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LSH LAW GROUP

Personal Injury · 500 Commerce St, Suite 1200, Riverton · (555) 010-4000

Elijah Thorne, Attorney at Law
Matter LSH-2026-MVA-770412

July 20, 2026

VIA EMAIL (dana.whitfield@keystonemutual.example)

Dana Whitfield, Bodily Injury Claims Adjuster
Keystone Mutual Insurance, Claims
P.O. Box 4100, Riverton

Re: TIME-LIMITED SETTLEMENT DEMAND — BODILY INJURY
Our client: John Doe
Your insured: Robert Smith
Date of loss: February 6, 2026
Policy no.: KMI-PA-7731045
Claim no.: KM-26-440871

Dear Ms. Whitfield:

As you know, this firm represents John Doe for the injuries he sustained on February 6, 2026, when your insured, Robert Smith, drove through the stop sign at Maple Hollow Road and Birch Avenue and struck the vehicle in which Mr. Doe was a passenger. Your declarations page, provided with your letter of March 20, 2026, confirms bodily injury limits of $10,000.00 per person. Mr. Doe's damages far exceed those limits. This letter is a time-limited offer to settle his bodily injury claim against Robert Smith for the $10,000.00 per-person limit, on the terms in section 6. Mr. Doe makes no property damage claim: the parked Civic belongs to his mother, Margaret Doe, whose claim (KM-26-440871-PD) is hers and is not part of this offer.

1. Liability

At about 7:10 a.m., Kevin Alvarez was driving his 2020 Ford Escape eastbound on Maple Hollow Road, with Mr. Doe belted in the front passenger seat. Mr. Alvarez came to a full stop at the all-way stop and proceeded. Mr. Smith, northbound on Birch Avenue in a 2017 Chevrolet Silverado, did not stop. He struck the Escape's front passenger door at about 28 mph and pushed it into a 2019 Honda Civic parked at the curb on Birch Avenue.

- Riverton PD Officer Thomas Garner (#2217) cited Mr. Smith for failure to stop at a stop sign (report RPD-26-018842).
- An independent witness, Ruth Calloway of 2209 Maple Hollow Road, gave a signed statement at the scene: the SUV stopped fully and went; the pickup "didn't even slow down."
- Doorbell-camera video from 2214 Maple Hollow Road shows the Escape stopped at the line and the Silverado entering the intersection without stopping (stills and the video file enclosed).

Liability is not reasonably in dispute.

2. Injuries and treatment

Mr. Doe complained of neck stiffness to Riverton Fire EMS at the scene (Medic 7, run RF-26-0206-114: "restrained front-seat passenger, complains of neck stiffness, declined transport"). His symptoms worsened and spread into his right hand. He has been diagnosed with a cervical strain and a **C5-C6 right paracentral disc herniation with mild right foraminal narrowing**.

Date(s)	Provider	Treatment and findings
02/20/2026	Riverton Urgent Care (Nina Patel, PA-C)	First treatment. History: "onset at MVA 02/06/2026, progressively worsening; numbness to right hand since 02/18." Cervical strain, rule out cervical radiculopathy; medication; referred to orthopedics and to chiropractic/PT.
02/24/2026 – 06/05/2026	Riverton Spine & Rehab (Dr. Mark Ellison, DC; Sara Lin, DPT)	Chiropractic care and physical therapy, 33 visits; discharged to a home program 06/05/2026.

03/05/2026	Lakeside Orthopedics (Dr. Alana Reyes, MD)	Right C6 dermatomal paresthesia; Spurling's test positive on the right. Cervical MRI ordered.
03/13/2026	Summit Imaging Center (Dr. Helen Park, MD)	Cervical MRI: C5-C6 right paracentral disc herniation with mild right foraminal narrowing; "no significant degenerative change at the adjacent levels."
03/27/2026	Lakeside Orthopedics	MRI reviewed; referred to pain management for an epidural steroid injection.
05/15/2026	Crescent Pain & Spine (Dr. Omar Haddad, MD)	Cervical epidural steroid injection under fluoroscopy.
06/12/2026	Lakeside Orthopedics	Maximum medical improvement. Residual intermittent right-arm paresthesia. Future care: possibly one to two repeat injections within 24 months.

In April, Mr. Doe missed four therapy visits after the rental Keystone provided for his mother's Civic ended on March 19, 2026 and his carpool ended on April 1, 2026. He returned on April 21, 2026, in evening appointments his mother could drive him to, and completed his course of care. Mr. Doe's only prior treatment was three chiropractic visits in 2021 for low-back stiffness, which resolved. He had no prior neck complaints or treatment.

3. The interval before first treatment

Mr. Doe first saw a provider on February 20, 2026, fourteen days after the collision. The record shows that his symptoms began at the scene and never stopped:

- He reported neck stiffness to the paramedics on the date of loss (EMS run report).
- On February 7, 2026 he bought ibuprofen and lidocaine patches at Riverton Drug (receipt enclosed).
- He called out of work at Northgate Distribution from February 9 through February 13, 2026, citing neck pain (Northgate attendance record), and texted his mother about his neck pain from February 7 through February 15.
- He had no way to get to a doctor: his mother's Civic was towed from the scene, the Escape was in the shop, and no rental was authorized until February 18, 2026.
- Numbness reached his right hand on February 18, 2026. He went to urgent care on his first day off, February 20.

His treating orthopedist, Dr. Alana Reyes, has reviewed the records. Her letter of June 19, 2026 states, to a reasonable degree of medical probability, that the delayed presentation is clinically consistent with a disc injury whose radicular symptoms evolve over days to weeks, that the C5-C6 herniation was more likely than not caused by the February 6, 2026 collision, and that the 2021 low-back care is unrelated.

4. Special damages

Provider / source	Date(s) of service	Description	Amount
Riverton Urgent Care	02/20/2026	Urgent care evaluation	$685.00
Riverton Spine & Rehab	02/24/2026–06/05/2026	Chiropractic and physical therapy, 33 visits × $185.00	$6,105.00
Lakeside Orthopedics	03/05, 03/27 & 06/12/2026	Orthopedic consult and follow-ups, 3 × $640.00	$1,920.00
Summit Imaging Center	03/13/2026	Cervical MRI without contrast	$2,395.00
Crescent Pain & Spine	05/15/2026	Cervical epidural steroid injection	$3,400.00
Riverton Drug	02/07/2026–06/12/2026	Prescriptions and OTC medication	$312.40
		Medical expenses	**$14,817.40**
Northgate Distribution	02/09/2026–05/18/2026	Lost wages: 9 shifts × 8 h × $22.00/hour	$1,584.00
		TOTAL SPECIAL DAMAGES	**$16,410.40**

Future medical. Dr. Reyes anticipates one to two repeat cervical epidural steroid injections within 24 months at $3,400.00 each, a future cost of $3,400.00 to $6,800.00.

General damages. Mr. Doe is 34. For four months he lived with neck pain and numbness into his right hand, missed work in his first weeks at a new job, sat through 33 therapy visits and a spinal injection, and still has intermittent right-arm paresthesia. A jury would value this injury well above Mr. Smith's $10,000.00 limit.

5. Demand

Mr. Doe demands the **$10,000.00** per-person bodily injury limit of policy KMI-PA-7731045 in full settlement of his bodily injury claim against Robert Smith.

6. Terms of this offer

This offer will remain open for **30 days from the date of this letter (08/19/2026)**. Acceptance must be in writing and must reach this office by email or mail by 5:00 p.m. on that date. If it does not, the offer is withdrawn without further notice and will not be renewed. Acceptance requires all of the following:

1. Keystone's written agreement to pay the $10,000.00 per-person limit, with payment by check payable to "John Doe and LSH Law Group, IOLTA Trust Account" delivered to this office within 15 days of the written acceptance.
2. In exchange for payment, Mr. Doe will sign a full and final release of all claims arising from the collision of February 6, 2026.
3. Mr. Doe will satisfy any valid liens for his medical treatment from the settlement proceeds.

Any counteroffer, or any acceptance that adds or changes a term, is a rejection of this offer. Please confirm receipt of this letter.

Very truly yours,

LSH LAW GROUP

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Elijah Thorne, Attorney at Law

Enclosures: Exhibits A–J, as listed in the enclosed Exhibit Index (exhibit packet assembled 07/17/2026)
cc: John Doe (client)

Internal routing — remove before sending			
Drafted: Demand Specialist (R.V.) 07/20/2026	CM audit: _____ __/__/____	Attorney approval: _____ __/__/____	Served (mail / email): __/__/____